

I do hereby declare that *Melvina Catherine Manning* did intentionally and negligently cause harm to the plaintiffs on or about June 12<sup>th</sup> of 2022, resulting in current and future damages to the plaintiffs.

### **1) Alienation of Affections and Malicious Deprivation of my Parental Rights**

"In *McGrady v. Rosenbaum*, 62 Misc.2d 182, 186, 308 N.Y.S.2d 181 (Sup. Ct. 1970), a right to recover for the lost companionship of a child was recognized. The court said:

Undoubtedly, ... a parent who has been wrongfully deprived of the company of his child, by interference with such custody, association and companionship, may recover damages from the wrongdoer for the mental anguish and wounded feelings and for the expenses incurred \*19 in vindicating the parent's rights to have his child. (*Pickle v. Page*, 252 N.Y. 474 [169 N.E. 650, 72 A.L.R. 842]; *McEntee v. New York Foundling Hosp.*, 21 Misc.2d 903 [194 N.Y.S.2d 269].)"  
~ *Strode v. Gleason*, 510 P.2d 250 (Wash. Ct. App. 1973)

**(This is arguably domestic violence against myself, as well as child abuse upon Timothy.)**

### **2) Defamation of Character**

#### **a) Libel per se**

I) false allegations of DV crimes committed against my son

1) It is a misdemeanor to intentionally and in bad faith make a false accusation of child abuse or neglect. If the other party seeks a domestic violence protection order that involves these types of false accusations, he or she may face misdemeanor charges. Sentencing can occur under RCW 9A.20.021 and may involve both imprisonment and a fine. [See **King County cause. # 22-2-09380-3**]

II) false allegations of DV crimes committed against my mother [petitioner, *Melvina C. Manning*]

#### **b) Slander per se**

I) outrageous accusations Mrs. Manning about myself, going so far as to falsely claim my Brother witness - he denied any knowledge of the slanderous allegations. This was done in front of my wife and children; words which I daresay would be most inappropriate to repeat on this form.

(see RCW 4.36.120)

### **3) Intentional and/or Reckless Infliction of Emotional Distress**

- a) myself
- b) Jessica
- c) Jessalynn
- d) Atom

caused upon our family by Mrs. Manning's malicious statements to our children, as well as the horrific allegations made loudly and publicly with total disregard to the fact that ALL-3 of my children were present and paying full attention. As well as the distress and hardship it is causing our family having to attend and contest these allegations. Especially the trauma caused directly to Jessalynn from a personal attack by Mrs. Manning to her; she hadn't even turned 10 yet, inexcusable.

We will be seeking an injunction on any prevention of communication between siblings, and a minimum of communication via supervised and/or recorded Zoom meetings between my son Timothy and I. We will be seeking relief for damages.

I certify under penalty of perjury under the laws of the state of Washington that all the information provided in this petition and any attachments, is true and correct as of 7/29/2022.

The block contains two handwritten signatures. The first signature, on the left, appears to be 'Jessica' written in a cursive, flowing script. The second signature, on the right, appears to be 'Timothy' written in a similar cursive style. Both signatures are in black ink.